

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Jameek Harris, LeShawn Drew, X
Plaintiffs, COMPLAINT
-against- CIVIL ACTION

Police Officer Carlos Thomas, Shield No. 21295, Police Officer
Anthony Mangano, Shield No. 27338, Police Officers John Doe, 1-5,
Sgt. John Doe 6, Captain John Doe 7, City of New York,
NYCHA,

Defendants.

NOW COMES the Plaintiffs, **Jameek Harris and LeShawn Drew**, by
and through their attorney, **D. Andrew Marshall, Esq.** for their Complaint
against the Defendants, respectfully shows to this Court and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action in which the Plaintiffs seek relief for the Defendants' violations of their rights secured by Title 42 of the United States Code §1983, by the First, Fourth, Fifth, Ninth, and Fourteenth Amendments to the Constitution of the United States, and the Constitution of the State of New York, 42 U.S.C. § 1437, *et seq.*, as well as the Charter, rules, regulations and ordinances of Defendant NYC of New York.
2. Plaintiffs bring this action seeking actual, general, special, compensatory and punitive damages as well as attorney's fees for violations and deprivations of their civil and constitutional rights by the defendants, their agents, servants and/or employees, while acting under color of law.
3. The Defendants City of New York, hereinafter, **Defendant NYC**, and the New York City Housing Authority, hereinafter, **Defendant NYCHA**, operating

through and in conjunction with the New York City Police Department ("NYPD"), have implemented and continue to conduct, enforce and sanction an unlawful vertical patrol and trespass arrest policy which has resulted in a pattern and practice of illegal stops, seizures, questioning, searches, and false arrests of residents of, and authorized visitors to NYCHA residences.

4. A vertical patrol is a top-to-bottom walk-through patrol or "sweep" of hallways, stairwells, rooftops and landings, elevators, and other common areas of a NYCHA residence. (NYPD Patrol Guide 212-59 and 212-60).
5. Under the vertical patrol policy and trespass arrest practices, NYPD officers conduct roving pedestrian checkpoints in and around NYCHA residences, wherein they indiscriminately stop and question every person they observe, without objective individualized suspicion of a crime, and unlawfully arrest individuals for trespass without probable cause.
6. The vertical patrol policy and trespass arrest practices involve systematic stopping, searching, questioning, and seizing of any and all persons observed in common areas of NYCHA residences absent individualized suspicion that implicate the Fourth Amendment to the United States Constitution.
7. In addition to organized and directed vertical patrols in NYCHA residences, some trespass arrests are the result of less formal sweeps.
8. Defendant NYC and Defendant NYCHA unlawfully enforce the trespass laws in NYCHA residences without adequate training and controls.
9. Defendant NYC and Defendant NYCHA implement and apply these policies, practices, and customs in an unconstitutional manner by focusing the patrols and

trespass arrest practices entirely on communities of color, such as NYCHA residences, where historically entrenched racial segregation ensures that African Americans and Latinos will bear the brunt of Defendants' unlawful actions.

10. Defendant NYC and Defendant NYCHA also discriminatorily acquiesce in, ratify, and fail to monitor or rectify NYPD officers' widespread unlawful practices.
11. As a result, individuals like Plaintiff Harris, with a legitimate reason for being on NYCHA property, are being unconstitutionally detained and/or arrested without any correlative rise in criminal activity.
12. The rate of trespass stops, arrests, and enforcement in predominantly minority NYCHA residences is, on average, three times higher than surrounding areas with similar rates of crime.
13. The vertical patrol policy and trespass arrest practices not only affect visitors like Plaintiff Harris, who are routinely stopped, questioned, searched, and/or seized, they also intimidate, threaten, and interfere with NYCHA residents like Plaintiff Drew, who are subjected to unreasonable terms and conditions as set forth in the NYCHA Highlights of House Rule, Lease and Policy.
14. The vertical patrol policy and trespass arrest practices unreasonably interfere with the rights of persons like Plaintiff Harris and Plaintiff Drew to freely associate among themselves within the confines of NYCHA property.
15. The decision to enforce trespass laws in this disproportionate way is not explained or justified by underlying crime levels in NYCHA residences.
16. The mandate of the NYPD is to safeguard community members from crime by providing security and otherwise delivering police services.

17. Plaintiff Drew, as well as NYCHA residents, are not provided protection on the same terms as other community members, rather they and their invited guests are subject to police harassment and unfounded stops, seizures, questioning, searches, and arrests when merely trying to enter, leave or enjoy the comforts of their homes and fellowship with their family and friends.
18. The pattern and practice of police activity in NYCHA buildings is so aggressive and well known that some people are afraid to visit Plaintiff Drew thereby preventing Plaintiff Drew from maintaining and fostering close familial and personal relationships without unjustified government interference.
19. In addition to the federal claims, Plaintiff Harris also asserts supplemental state law tort claims stemming from the December 12, 2014 occurrence.
20. The individual Defendant Police Officers were acting under color of state law in the course and scope of their employment, agency and service vis-à-vis, Defendant NYCHA, Defendant NYC or the NYPD, a department of the Defendant NYC.
21. Alternatively, if, the individual Defendant Police Officers were not acting under color of state law in the course and scope of their employment, agency and service, they were negligently acting beyond the scope of their duty as police officers.
22. As a result of the aforementioned deprivations, Plaintiffs suffered damages, including derivation of rights, privileges and immunities as well as physical, emotional, mental and psychological pain and suffering.
23. The Defendants herein are collectively and individually responsible for the deprivation of rights, privileges and immunities and other damages visited upon Plaintiff Harris and Plaintiff Drew.

JURISDICTION

24. That jurisdiction is founded upon the existence of a Federal Question.
25. That jurisdiction is founded upon U.S.C. §1331 and §1343(3) and (4), this being an action authorized by law to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to Plaintiffs by the First, Fourth, Fifth, Ninth and Fourteenth Amendments to the Constitution of the United States, 42 U.S.C. §1983, Article 1, Section, 8, 11, 12, et seq. of the Constitution and laws of the State of New York.
26. Plaintiffs further invoke this Court's jurisdiction pursuant to 28 U.S.C. §1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that give rise to the federally based claims and causes of action.
27. The amount in controversy exceeds, exclusive of interest and costs, the sum or value of seventy-five thousand dollars (\$75,000.00).

VENUE

28. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. §1391 (a), (b) and (c) because the claim arose in this district.

JURY DEMAND

29. Plaintiffs demand a trial by jury in this action.

PARTIES:

30. Plaintiff Jameek Harris, hereinafter “**Plaintiff Harris**,” is a citizen of the State of New York within the jurisdiction of this court.
31. Plaintiff LeShawn Drew, hereinafter “**Plaintiff Drew**,” is a citizen of the State of New York within the jurisdiction of this court.
32. On December 12, 2014 at all times relevant and material to this case **Defendant NYC** was and still is a body corporate and politic, constituting a municipal corporation duly organized and existing under and by virtue of the laws of Defendant NYC and State of New York.
33. **Defendant NYC** is authorized under the laws of the State of New York to maintain, operate, and govern a police department, the NYPD, including the precincts of the NYPD and the personnel assigned or stationed there, all of whom act as Defendant NYC’s agent in the area of law enforcement and for which it is ultimately responsible.
34. On December 12, 2014 at all times relevant and material to this case **Defendant NYCHA**, with its principal offices located at 250 Broadway, New York, New York 10007, is a public housing authority that owns and operates housing for low-income residents in all five boroughs of New York City, including the Saint Nicholas Houses, and the subject premises thereat.
35. Defendant NYCHA is responsible for the implementation and design of policing and security policies in NYCHA residential buildings.
36. The law enforcement activities of NYPD and Defendant NYCHA are supported in part by federal funds.

37. On December 12, 2014 at all times relevant and material to this case the Defendant NYC, its departments, agents, servants, and/or employees were charged with, without limitation, hiring, training, retraining, directing, supervising, investigating, disciplining, overseeing, appointing, and promoting it officers, supervisors, and staff in their employ, including but not limited to the defendants herein.
38. On December 12, 2014 at all times relevant and material to this case Defendant Police Officer Carlos Thomas, hereinafter “**Defendant Thomas**,” was employed by Defendant NYC and NYPD at the Housing Borough Manhattan Impact Response Team as a police officer. He is sued in his individual and official capacities.
39. On December 12, 2014 at all times relevant and material to this case Defendant Police Officer Anthony Mangano, Shield No. 27338, hereinafter “**Defendant Mangano**,” was employed by Defendant NYC and NYPD at Housing Borough Manhattan Impact Response Team, as a police officer. He is sued in his individual and official capacities.
40. On December 12, 2014 at all times relevant and material to this case Defendant Police Officers John Doe 1-5, hereinafter “**Defendants Doe 1-5**,” were employed by Defendant NYC and NYPD at Housing Borough Manhattan Impact Response Team as a Police Officers. They are sued in their individual and official capacities.
41. On December 12, 2014 at all times relevant and material to this case Defendant Sgt. John Doe¹¹, hereinafter “**Defendant Sgt. Doe 6**,” was employed by Defendant NYC and NYPD at Housing Borough Manhattan Impact Response

Team as a Police Officer with the rank of sergeant with first line supervisory responsibilities duties. He is sued in his individual and official capacities.

42. On December 12, 2014 at all times relevant and material to this case, Defendant Captain John Doe¹², hereinafter “**Defendant Captain Doe 7**,” was employed by Defendant NYC and NYPD at the Housing Borough Manhattan Impact Response Team, as a police officer with the rank of captain with first line supervisory responsibilities duties. He is sued in his individual and official capacities.
43. Upon information and belief, the Defendant NYC and NYPD remain the public employer of the named defendant Police Officers.
44. As used herein, the term “police officer” is intended to refer to NYPD officers in the general and not to any specific rank, title, or position.
45. Defendants Doe 1-5, Sgt. Doe 6, and Captain Doe 7 were employed by Defendant NYC, as Police Officers or supervisors, whose true names and shield numbers are presently unknown to Plaintiff.
46. Defendants herein were those Police Officers acting under color of law, employed by the Defendant NYC who: vertically patrolled the subject premises; harassed, intimidated, threatened, strip-searched Plaintiff Harris; falsely detained, arrested and imprisoned; maliciously prosecuted; conspired to and actually violated and deprived Plaintiff Harris of his rights, privileges and immunities; conspired to and actually violated and deprived Plaintiff Drew of his rights, privileges and immunities; knowingly drafted and/or filed, or conspired to file false reports, incident reports, summons(es), appearance tickets, complaint and arrest reports against Plaintiff Harris; gave knowingly false statements or testimony in or for a

criminal proceeding regarding Plaintiff Harris; deliberately withheld the nature of the charges against Plaintiff Harris; acted in a manner designed to cover up evidence of their unlawful and unconstitutional activities alleged herein, and; otherwise acted unlawfully.

47. The individual defendants' acts herein complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiffs' rights.

48. At all relevant times, the individual defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS:

49. This action arose out of incidents that began on December 12, 2014 at approximately 8:30 p.m. inside of 217 West 127th Street, hereinafter, "the subject premises."

50. The subject premises is located inside of the Saint Nicholas Houses, a NYCHA owned and operated public housing complex.

51. Saint Nicholas Houses consist of thirteen 14-story buildings on 15.63 acres in upper Manhattan, bordered by Frederick Douglass and Adam Clayton Powell, Jr. Boulevards, and West 127th and 131st Streets.

52. Saint Nicholas Houses have 1,523 apartments housing some 3,521 residents.

53. Plaintiff Harris is an African American man and at all times material and relevant to this claim, was the guest Plaintiff Drew, a lawful tenant at the subject premises.

54. Plaintiff Drew is an African American man and at all times material and relevant to this claim, was the lawful tenant residing in an apartment in the subject premises.

55. Prior to December 12, 2014, Plaintiff Drew, upon information and belief, has had African-American guest(s) or visitor(s) in the past at the subject premises that were unlawfully stopped, seized, questioned, searched and/or falsely arrested for trespass in the subject premises without any reasonable, articulable suspicion or probable cause that they were engaging in criminal activity.

56. On December 12, 2014, Plaintiff Harris and Plaintiff Drew have been friends for several years.

57. On December 12, 2014, at approximately 8:30 p.m. Plaintiff Harris arrived at and entered the subject premises, a NYCHA public housing residential building, intending to visit with Plaintiff Drew.

58. Plaintiff Harris, as Plaintiff Drew's guest, entered the subject premises through the front door.

59. On December 12, 2014, at approximately 8:30 p.m. as Plaintiff Harris entered the subject premises, Defendants police officers were present in the lobby and witnessed him enter.

60. Plaintiff Harris boarded an elevator and went to the fourth floor and arrived at Plaintiff Drew's door.

61. Plaintiff Harris met with Plaintiff Drew briefly and departed.

62. As Plaintiff Harris exited the subject premises, he was accosted by the Defendant Officers who stopped, questioned, searched, and seized Plaintiff Harris in violation of his constitutional rights.
63. Plaintiff Harris explained to the Defendant Officers that he was a guest/invitee of Plaintiff Drew and therefore privileged to be on the subject premises.
64. Plaintiff Harris explained to the Defendant Officers that he live at Saint Nicholas Houses.
65. Plaintiff Harris' status as an invitee and guest was confirmed by an individual with knowledge that Plaintiff Harris was the invited guest of Plaintiff Drew.
66. Police Officer Thomas, Defendant Mangano and Police Officers Doe 1-5 searched Plaintiff Harris underneath his clothes and undergarments before placing him into the police cruiser.
67. Police Officer Thomas, Defendant Mangano and Police Officers Doe 1-5 ignored the confirmatory identification of Plaintiff Harris and proceeded to escort him to the local precinct.
68. Defendant Sgt Doe 6 and Captain Doe 7 were present outside of the subject premises before, during and after the stop, search, seizure, questioning and confirmatory identification of Plaintiff Harris.
69. Plaintiff Harris was thereafter removed to a local precinct where the Defendant Police Officers processed Plaintiff Harris' arrest.
70. Although Plaintiff Harris demanded to know his charges, the Defendants ignored his request and never informed him of same.

71. Although the Defendants knew that they lacked probable cause, they nevertheless charged Plaintiff Harris with violation of multiple counts of trespass in breach of the New York State Penal Law Article 140.
72. Although the Defendants knew that they lacked probable cause, they swore out a Criminal Court Complaint that resulted in the criminal prosecution of Plaintiff Harris.
73. Plaintiff Harris was caused to be arraigned in the Criminal Court of the City of New York, County of New York where he entered a plea of not guilty.
74. Plaintiff Harris endured loss of liberty and other damages as a result of Defendants' actions and omissions.
75. The criminal prosecution of Plaintiff Harris was terminated in his favor.
76. In addition to Plaintiff Harris, Plaintiff Drew has had other visitors stopped and detained by NYPD officers at or near the subject premises in route to visiting him.
77. Plaintiff Drew has had other visitors other than Plaintiff Harris stopped and detained by NYPD officers at or near the subject premises in route to visiting him.
78. Plaintiff Drew's guests are forced to surrender their rights in exchange for him residing in a NYCHA residence as per the unreasonable terms and conditions delineated in the Highlights of House, Lease Terms and Policy.
79. As a result of the recurrent unlawful stops and searches at the subject premises, several of Plaintiff Drew's friends refuse to or have curtailed their visits there.
80. Each and all of the acts of the Defendant Police Officers alleged herein were undertaken by said Defendants in furtherance of their employment by Defendant NYC and NYPD with the power and authority vested in them as officers, agents

and employees of Defendant NYC and NYPD and/or incidental to the lawful pursuit of their duties as officers, agents, assignees, employees, or servants, of Defendant NYC and NYPD.

81. Each and all of the acts of the Defendant Police Officers alleged herein were undertaken by said Defendants in furtherance of Defendant NYCHA's agreement with NYPD to rigorously enforce the discriminatory vertical patrol policy.

82. Each and all of the acts of Defendant Police Officers alleged herein were undertaken by said Defendant Police Officers in furtherance of their employment by Defendant NYC and NYPD with the power and authority vested in them as officers, agents and employees of Defendant NYC and NYPD and/or incidental to the lawful pursuit of their duties as officers, agents, assignees, employees, or servants, of Defendant NYC and NYPD.

83. Each and all of the acts of the Defendant Police Officers alleged herein were undertaken by said Defendant Police Officers in furtherance of Defendant NYCHA's agreement with NYPD to rigorously enforce the discriminatory vertical patrol policy.

PLAINTIFFS' INJURIES AND DAMAGES

84. As a direct and proximate consequence of the aforementioned actions by the defendants:

- a) Plaintiffs were denied and deprived of their state and federal constitutional rights, liberties, immunities and privileges;
- b) Plaintiffs were denied and deprived of their state and federal statutory rights, liberties, immunities and privileges;

- c) Plaintiffs suffered severe emotional and mental anguish and pain;
- d) Plaintiffs suffered psychological injuries;
- e) Plaintiffs continues to suffer severe emotional and mental anguish and pain;
- f) Plaintiffs incurred other items of attendant damages.

PENDANT STATE CLAIMS:

85. That Plaintiff Harris' Notice of the Claim and Notice of Intention to Sue for Damages has been served upon the Comptroller of the City of New York.

86. That pursuant to §50(h) of the General Municipal Law hearings **have not** been held.

87. That this action is commenced within one year and 90 days after the cause of action arose.

FIRST CAUSE OF ACTION:
CIVIL RIGHTS ACTION 42 USC §1983
ARREST

88. Plaintiff Harris and Plaintiff Drew hereby repeat, reiterate and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect set forth herein, further alleges:

89. At all times relevant herein, the Defendant Police Officers were subject to 42 USC §1983.

90. Acting under the color of law, the Defendant Police Officers worked a denial of Plaintiff Harris' and Plaintiff Drew's rights, privileges and immunities secured by the United States Constitution or Federal Law, to wit:

- a) By depriving Plaintiff Harris of his liberty without due process of law, by taking him into custody and detaining him against his will
- b) By performing an unreasonable search of Plaintiff Harris's person without due process of law;
- c) By conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny Plaintiff Harris equal protection of the law;
- d) By refusing or neglecting to prevent such deprivation and denials to Plaintiff Harris thereby depriving Plaintiff Harris his rights, privileges and immunities as guaranteed by the First, Fourth, Fifth, Ninth and Fourteenth Amendments to the Constitution of the United States, and;
- e) By refusing or neglecting to prevent such deprivation and denials to Plaintiff Drew, thereby depriving Plaintiff Drew his rights, privileges and immunities as guaranteed by the First, Ninth and Fourteenth Amendments to the Constitution of the United States,

91. The Defendant Police Officers acted with deliberate indifference to Plaintiff Harris and Plaintiff Drew's rights, privileges and immunities.

92. As a direct and proximate result of the Defendant Police Officers' acts and omissions, Plaintiff Harris and Plaintiff Drew were deprived of their rights, privileges and immunities under the First and Ninth Amendment to the United States Constitution and 42 U.S.C. § 1983.

93. As a direct and proximate result of the Defendant Police Officers' acts and omissions, Plaintiff Harris was deprived of their rights, privileges and immunities

under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

94. That at all relevant times, Defendant Police Officers separately, and in concert, while acting under color and pretense of law and with deliberate indifference:

- a) falsely detained, arrested and imprisoned Plaintiff Harris;
- b) subjected Plaintiff Harris to excessive force;
- c) withheld provide timely and due medical care and treatment from injured Plaintiff Harris;
- d) subjected Plaintiff Harris to an invasive search of his person absent legal cause;
- e) filed a false arrest report and corresponding NYPD complaint;
- f) gave knowingly false statements or testimony in or for a criminal proceeding;
- g) failed to intercede on behalf of Plaintiff Harris to prevent the Constitutional violations aforesaid, despite having an opportunity to do so;
- h) denied Plaintiff Harris equal protection of the law;
- i) engaged in a cover-up in order to conceal the wrongful and unlawful conduct taken against Plaintiff Harris;
- j) deprived Plaintiff Harris of liberty without due process of law;
- k) deprived Plaintiff Harris and Plaintiff Drew of the right to freely associate with each other, and;
- l) deliberately withheld from Plaintiff Harris the nature of the charges against him.

95. Each and all of the acts and omissions of the Defendant Police Officers alleged herein were done, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and under the authority of their office as Police Officers of said state, city and county.
96. Each and all of the Defendant Police Officers' acts and omissions alleged herein were undertaken by them while acting in the course and scope of their duties and functions as agents, assignees, employees, servants, or officers of Defendant NYC, Defendant NYCHA and NYPD when engaging in the conduct described herein.
97. The Defendant Police Officers, by reasonable diligence, could have prevented the aforementioned wrongful acts from being committed.
98. The Defendant Police Officers, by reasonable diligence, could have mitigated Plaintiff Harris' and Plaintiff Drew's damages had they intervened in the aforementioned unlawful conduct and/or protected Plaintiffs.
99. That the aforesaid actions and omissions violated 42 U.S.C. §1983.
100. That as a result of the foregoing, Plaintiff Harris and Plaintiff Drew are entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION:
CIVIL RIGHTS ACTION 42 USC §1983
DETENTION AND CONFINEMENT

101. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect set forth herein, further alleges:

102. As a result of the Defendant Officers' concerted and malicious detention and confinement of Plaintiff Harris, they deprived Plaintiff Harris of his rights to liberty without due process of law and to equal protection of the law, and the due course of justice was impeded, in violation of the Fourth, Fifth, Ninth and Fourteenth Amendments of the United States and 42 USC §1983.

103. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

THIRD CAUSE OF ACTION:
CIVIL RIGHTS ACTION 42 USC §1983
STRIP SEARCH

104. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect set forth herein, further alleges:

105. As a result of the Defendant Officers' concerted and malicious detention and confinement of Plaintiff Harris, Defendant Police Officers 1-3 subjected Plaintiff Harris to a strip search of his body, in a situation where there was no reason to believe that a weapon or contraband had been concealed on or in his body, and

thus deprived Plaintiff Harris of both his right to privacy in his person and his right to equal protection of the law, and the due course of justice was impeded, in violation of the Fourth, Ninth and Fourteenth of the United States and 42 USC §1983.

106. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

FOURTH CAUSE OF ACTION:
CIVIL RIGHTS ACTION 42 USC §1983
REFUSING OR NEGLECTING TO PREVENT

107. Plaintiff Harris and Plaintiff Drew hereby repeat, reiterate and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein and further allege:

108. At all times relevant to this complaint, the Defendant Police Officers were acting under the direction of the Defendant Sgt. Doe 6, Defendant Captain Doe 7 and Defendant NYC.

109. Acting under the color of law and pursuant to the official policy or custom of the Defendant NYC and Defendant NYCHA, Defendant Sgt. Doe 6, Defendant Captain Doe 7 knowingly, recklessly or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis the Defendant Police Officers in their duty to refrain from:

- a) Unlawfully and maliciously arresting, imprisoning and prosecuting citizens who are acting in accordance with their constitutional and statutory rights, privileges and immunities,
- b) Conspiring to violate the rights, privileges and immunities guaranteed to Plaintiffs by the Constitution and the laws of the United States and the law of the State of New York, and;
- c) Otherwise depriving Plaintiffs of their constitutional and statutory rights, privileges and immunities.

110. Those individual Defendant Police Officers that were present, but did not actively participate in the aforementioned unlawful conduct, observed such conduct; had an opportunity to prevent such conduct; had a duty to intervene, mitigate and/or stop the events alleged herein.

111. Those individual Defendant Police Officers that were present, but did not actively participate in the aforementioned unlawful conduct, failed to, *inter alia*, report the unlawful conduct alleged herein to supervisors.

112. Those individual supervising Defendant Police Officers who were present, but did not actively participate in the aforementioned unlawful conduct, failed to investigate, sanction, and/or discipline any participant.

113. As a direct and proximate result of this unlawful conduct, Plaintiff Harris and Plaintiff Drew sustained the damages herein alleged.

114. That as a result of the foregoing, Plaintiff Harris and Plaintiff Drew are entitled to actual, general, special, compensatory and punitive damages against

the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

FIFTH CAUSE OF ACTION:
MALICIOUS PROSECUTION

115. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect set forth herein, further alleges:
116. The Defendant Police Officers, while acting under color of law, in the performance of their employment and within the scope of their authority, initiated and continued a criminal proceeding against Plaintiff Harris in the Criminal Court of City of New York, County of New York.
117. The proceeding was terminated in Plaintiff Harris's favor.
118. The Defendant Police Officers knew or had reason to know that they lacked probable cause to initiate a criminal proceeding against Plaintiff Harris.
119. That the Defendant Police Officers deliberately testified falsely, withheld vital information, offered false affidavits or other such writings to the Criminal Court.
120. That by reason of the malicious prosecution, Plaintiff Harris was unreasonably deprived of the rights, liberties and immunities secured to him under law and has been otherwise damaged.
121. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

SIXTH CAUSE OF ACTION:
MALICIOUS ABUSE OF PROCESS

122. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect set forth herein, further alleges:
123. The Defendant Police Officers issued legal process to place Plaintiff Harris under arrest.
124. The Defendant Police Officers arrested Plaintiff Harris in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to obtain more arrests, to obtain more indictments, to obtain more convictions, to obtain overtime pay, and to obtain promotions within their respective agencies, among other things.
125. The Defendant Police Officers acted with intent to do harm to Plaintiff Harris without excuse or justification.
126. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.
127. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

SEVENTH CAUSE OF ACTION:
DENIAL OF SUBSTANTIVE DUE PROCESS

128. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if set forth herein, and further alleges:

129. Defendant NYC and Defendant NYCHA's vertical patrol policy and trespass arrest practices, as written and as applied, violates the Due Process Clause of the Fourteenth Amendment to the United States Constitution, in that it authorizes and causes NYPD officers to arbitrarily stop, seize, question, search, and arrest individuals for the mere exercise of their constitutional rights to freedom of association and assembly and their constitutional rights to intimate association.

130. By enforcing the unconstitutional vertical patrol policy and trespass arrest practices through the initiation and pursuit of criminal charges against Plaintiff Harris which charges have directly resulted in his assault, battery, arrest, detention and prosecution, Defendant Police Officers intentionally and under color of law have denied Plaintiff Harris his right to due process of law, in violation of the Fourteenth Amendment to the United States Constitution and 42 U.S.C. § 1983.

131. The Defendant Police Officers all knew or had reason to know the scope and limits of their legal authority, but deliberately exceeded it when they engaged Plaintiff Harris.

132. As a direct and proximate result of this unlawful conduct, Plaintiff Harris sustained the damages herein alleged.

133. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

EIGHTH CAUSE OF ACTION:
CLAIMS UNDER THE UNITED STATES HOUSING ACT,
42 U.S.C. § 1437d(l)(2)

134. Plaintiff Drew hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein and further allege:

135. Acting under color of state law, Defendant Police Officers and Defendant NYCHA s have, as described above, violated, and/or continue to violate, Plaintiff Drew's rights under the United States Housing Act, 42 U.S.C. § 1437(d)(l)(2), its implementing regulations, 42 U.S.C. § 1983, and the federal and New York State.

136. As a tenant, Plaintiff Drew is subjected to the unreasonable terms and conditions delineated in the Highlights of House, Lease Terms and Policy.

137. Plaintiff Drew is unable to use and enjoy his residence and accommodate guests because as a condition of living in a NYCHA residence, Plaintiff Drew and his guests must waive their rights, privileges and immunities and submit to Defendants' harassing vertical patrol policy and intimidating trespass arrest practices as described herein.

138. The past and continuing acts and conduct of Defendant NYC, Defendant NYCHA, and their agents, were and are intentional, and have been carried out

with deliberate indifference to the federally protected rights of NYCHA residents in general and Plaintiff Drew in particular.

139. Defendant NYC and Defendant NYCHA's policies coupled with the conditions are unreasonable and have had, and continue to have, an adverse impact on Plaintiff Drew that is not justified by necessity.

140. Defendants have intentionally, knowingly, and continuously engaged in the practices described above.

141. That as a result of the foregoing, Plaintiff Drew is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

NINTH CAUSE OF ACTION:
EQUAL PROTECTION CLAUSE, 42 U.S.C. § 1983

142. Plaintiff Harris hereby repeats, reiterates and re-alleges each allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein and further allege:

143. The Defendant Police Officers' conduct was tantamount to discrimination against Plaintiff Harris based on his status as an African-American guest in a NYCHA building.

144. Acting under color of state law, Defendants have applied the vertical patrol policy and trespass arrest practices against Plaintiff Harris in an intentionally discriminatory and race-based manner.

145. Defendants have focused enforcement of the vertical patrol policy and trespass arrest practices in African-American and Latino communities.

146. Other non-African American and non- and Latino American guests in non-NYCHA residential buildings are not targeted for *inter alia*, random stops, searches, seizures and use of force.
147. Defendants have targeted communities of color, such as NYCHA residences, for focused implementation of vertical patrols and trespass arrest enforcement, as residents in, and visitors to, these buildings are inhabited almost entirely by African Americans and Latinos.
148. This pattern of targeted enforcement is not explained or justified by underlying crime rates in NYCHA residences.
149. Defendant NYC and Defendant NYCHA have acquiesced in, ratified, and failed to check widespread violations of Plaintiffs' constitutional rights to be free from unreasonable searches and seizures, because of Plaintiffs' race.
150. Defendant NYC and Defendant NYCHA devised, implemented, enforced, encouraged, and sanctioned these constitutional abuses were and are directly and proximately caused by policies, practices and/or customs including: (a) targeted implementation of vertical sweeps and trespass arrests in communities of color; (b) the discriminatory failure to adequately and properly screen, train, support, and supervise NYPD officers; (c) the discriminatory failure to adequately and properly monitor and discipline the NYPD officers.
151. This disparate treatment caused Plaintiff Harris to suffer damages.
152. That as a result of the foregoing, Plaintiff Harris has been deprived of their right to Equal Protection of the laws under the Fourteenth Amendment to the United States Constitution and 42 U.S.C. § 1983..

153. That as a result of the foregoing, Plaintiff Harris is 3333entitled to compensatory damages, and punitive damages against the individual defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

TENTH CAUSE OF ACTION:
SUPERVISORY LIABILITY UNDER 42 U.S.C. § 1983

154. Plaintiff Harris and Plaintiff Drew hereby repeat, reiterate and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein and further allege:

155. Upon information and belief, on December 12, 2014 at all times relevant and material to this case, Defendant Sgt Doe 6 and Defendant Captain Doe 7 had direct first-line supervisory responsibilities for taking appropriate measures to ensure and protect the civil rights and personal safety of members of the public in general and the Plaintiff in particular, who came into contact with the officers at the PSA 6.

156. These responsibilities were required to be carried out in a manner consistent with the laws and mandates that govern and control the Defendant NYC and NYPD, including City and NYPD directives and orders.

157. Defendant Sgt. Doe 6 and Defendant Captain Doe 7 were present at the subject premises on the date and time of occurrence giving rise to this claim.

158. At all times relevant to this complaint, the Defendant Police Officers were acting under the direction of the Defendant Sgt. Doe 6, Defendant Captain Doe 7 and Defendant NYC.

159. Acting under the color of law and pursuant to the official policy or custom of the Defendant NYC, Defendant Sgt. Doe 6 and Defendant Captain Doe 7 knowingly, recklessly or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis the Defendant Police Officers in their duty to refrain from:

- a) Unlawfully and maliciously arresting, imprisoning and prosecuting citizens who are acting in accordance with their constitutional and statutory rights, privileges and immunities,
- b) Conspiring to violate the rights, privileges and immunities guaranteed to Plaintiffs by the Constitution and the laws of the United States and the law of the State of New York, and;
- c) Otherwise depriving Plaintiffs of their constitutional and statutory rights, privileges and immunities.

160. Defendants Sgt. Doe 6 and Captain Doe 7 personally caused Plaintiffs' deprivations and damages by being deliberately or consciously indifferent to the rights of Plaintiffs by, inter alia, failing to properly supervise their subordinate employees regarding the care and custody, investigation and safeguarding of Plaintiffs from abuse.

161. Defendants Sgt. Doe 6 and Captain Doe 7 personally caused Plaintiffs' deprivations and damages by being deliberately or consciously indifferent to the rights of others by, inter alia, failing to properly supervise their subordinate employees regarding the adequate and proper marshaling of evidence.

162. Defendant Sgt. Doe 6 and Defendant Captain Doe 7 personally caused Plaintiffs' deprivations and damages by being deliberately indifferent to Plaintiffs as they, inter alia, condoned the enforcement of the irrational policy of stopping, searching and seizing NYCHA tenants and their guests and using punitive force against them without probable cause, reasonable suspicion or legal basis.
163. As a direct and proximate result of this conduct, Plaintiffs sustained the damages herein alleged.
164. That as a result of the foregoing, Plaintiffs are entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

ELEVENTH CAUSE OF ACTION:
MUNICIPAL LIABILITY

165. Plaintiff Harris and Plaintiff Drew, hereby repeat, reiterate and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein and further allege:
166. Defendant NYCHA, in connection with Defendant NYC and the NYPD, through its senior officials at the central office and in each of its precincts, promulgates and implements policies, including those with respect to vertical patrols in NYCHA buildings, racial profiling, stop and frisk, use of force, strip searches, reporting and investigating the use of force by staff, and provision and access to medical and other programs and services mandated by local law and court orders.

167. Rather than adopt and enforce policies necessary to prevent constitutional violations, Defendant NYC, through its agents, has enforced, promoted, encouraged and sanctioned a policy, practice and/or custom of roving pedestrian checkpoints for general crime control and indiscriminate stops, searches and seizures of persons, including without limitation Plaintiff Harris, absent objective and individualized criteria.

168. By adopting and/or implementing the vertical patrol policy and trespass arrest practices in this manner, Defendant NYC has enforced, promoted, encouraged and sanctioned a policy, practice and/or custom of stopping, searching, questioning, and seizing, NYCHA guests, including without limitation Plaintiff Harris, without the reasonable articulable suspicion of criminality as required by the Fourth Amendment to the United States Constitution.

169. By adopting and/or implementing the vertical patrol policy and trespass arrest practices in this manner, Defendant NYC has enforced, promoted, encouraged and sanctioned a policy, practice and/or custom of arresting and prosecuting NYCHA guests, including without limitation Plaintiff Harris, without probable cause to establish that a criminal offense has been or is being committed.

170. By sanctioning and enforcing the vertical patrol policy and trespass arrest practices in this manner, Defendant NYC has unlawfully vitiated the rights, privileges and immunities of a class or demographic segment within New York City, including without limitation Plaintiff Harris and Plaintiff Drew.

171. Defendant NYC has been deliberately indifferent to the impact and consequences of the vertical patrol policy and trespass arrest practices.

172. Defendant NYC has been deliberately indifferent to enacting prophylactic measures to mitigate the impact and consequences of the vertical patrol policy and trespass arrest practices.
173. The Defendant Police Officers, while acting under color of state and local law, engaged in conduct that constitutes policies, customs, and practices, procedure or rule of Defendant NYC, Defendant NYCHA and/or NYPD, but which is forbidden by the Constitution of the United States.
174. These constitutional abuses and violations were, and are, directly and proximately caused by policies, practices and/or customs devised, implemented, enforced, promoted, encouraged and sanctioned by Defendant NYC, including but not limited to: (a) the failure to adequately and properly, train, and supervise NYPD officers; (b) the failure to properly and adequately monitor and discipline NYPD officers; (c) the failure to adequately and properly screen and hire NYPD officers, and; (d) the failure to rectify the NYPD's epidemic of baseless stops, seizures, questions, searches arrests and prosecutions for alleged trespass violation on NYCHA premises.
175. In addition, senior officials in the NYPD are aware of and tolerate certain practices by subordinate employees.
176. Upon information and belief, the aforementioned practices constitute unwritten NYPD policies and customs because they are widespread, long-standing and deeply embedded in the culture of the agency.
177. Defendant NYC through the NYPD, has had, and still has hiring practices that it knows will lead to the hiring of police officers lacking the qualifications to

discharge their duties in accordance with the Constitution of the United States and is deliberately indifferent to the consequences.

178. Defendant NYC through the NYPD, has had, and still has supervisory practices that it knows will lead to lax supervision of police officers whom lack the qualifications to discharge their duties in accordance with the Constitution of the United States and is deliberately indifferent to the consequences.

179. Defendant NYC through the NYPD, has had, and still has disciplinary practice that it knows neither sufficiently deters nor adequately punishes police officers whom lack the qualifications to discharge their duties in accordance with the Constitution of the United States and is deliberately indifferent to the consequences.

180. Defendant NYC and Defendant NYCHA through the NYPD, have a de facto policy that invites, *inter alia*, unlawful stops, searches, seizures and prosecutions.

181. Defendant NYC, through the NYPD, has de facto employee promotion policies and other financial and status incentives that encourage, *inter alia*, negligent investigations; the fabrication of evidence, and perjury.

182. Defendant NYC through the NYPD has de facto policies that encourage competition among employees which fosters, *inter alia*, improper manipulation of subordinates.

183. Defendant NYC through the NYPD's actions and omissions have created and maintained the perception among high-ranking supervisors that a supervisor who turns a blind eye towards evidence of officer harassment and intimidations, cover-

ups, medical neglect, and other misconduct and fails to investigate these incidents, will suffer no damage to his or her career or financial penalty.

184. Defendant NYC, at all relevant times, was aware that the individual Defendant Police Officers routinely committed constitutional violations such as those at issue here and have failed to change their policies, practices, and customs to stop this behavior.

185. The Defendant NYC failed to properly and adequately investigate prior complaints filed against the defendants.

186. Defendant NYC, through the NYPD, at all relevant times, was aware that the individual Defendant Police Officers were unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

187. The Defendant NYC, through a policy, practice and custom, directly and proximately caused Plaintiffs' deprivations and damages.

188. Nevertheless, the Defendant NYC exercised deliberate indifference by failing to take remedial action.

189. The existence of the aforementioned customs and practice may be inferred from repeated occurrences of similar wrongful conduct as documented in the civil rights actions filed against the Defendant NYC, including but not limited to the following cases:

- a) Lotorto v. City of New York, 10CV1223(ILG)(JMA) (USDC EDNY), (police officers beat, arrest and destroy a video recording of a bystander who was recording an arrest occurring n public);

- b) Schoolcraft v. City of New York, 10CV6005(RWS)(USDC SDNY), (police officer who exposed a precinct's policies and practices of illegal quotas for the issuance of summonses and arrests, falsifying evidence and suborning perjury alleges he was arrested and committed to a psychiatric facility in retaliation for exposing said policies and practices to the press);
- c) Long v. City of New York, 09CV60990(AKH)(USDC SDNY); People v. Pogan, 6416-2018 (Sup. Ct. NY Co.) (police officer who purportedly swore out a false complaint and used excessive force is convicted of falsifying police records and was prosecuted for recklessly using physical force, the plaintiff was engaged in expressive conduct when he was as salted by the office); (police officer at the 24th precinct issues four (4) summonses to a woman for her lodging a complaint against him with the Civilian Complaint Review Board at the precinct)
- d) Colon v. City of New York, (09CV0008)(USDC, EDNY); (police officers fired for falsifying evidence);
- e) Taylor-Mickins v. City of New York, 09CV7923(RWS)(USDC SDNY);
- f) Floyd, et al v. City of New York, (08 CV. 1034) (USDC SDNY) (SAS)

190. In addition, the following are City policies, practices and customs:

- a) Falsely arresting innocent individuals, based on a pretext, in order to meet productivity goals;
- b) Falsely swearing out criminal court complaints and/or lying and committing perjury during sworn testimony in order to protect other officers and to meet productivity goals;

- c) Fabricating evidence against individuals;
- d) Using and threatening the use of excessive force on individuals;
- e) Retaliating against individuals who engage in free speech;
- f) Ignoring the constitutional rights of the general public;
- g) Ignoring the constitutional rights of the persons in their care and custody;
- h) Use force in an unreasonable, unnecessary, unjustified and excessive manner;
- i) Failing to adequately instruct and supervise the officer under the defendant's care in the proper and appropriate care and treatment of individuals and detainees in their care and custody and control;
- j) Inadequately and/or improperly investigating complaints of harassment, intimidation, misconduct, use of force, abuse by officers and inadequate punishment of the subjects of those complaints;
- k) Tolerating acts of brutality;
- l) IAB and the Inspector General having substantially failed in their responsibility to investigate misconduct and discipline offenders;
- m) Having policies that operate to insulate police officers who engage in criminal or other serious official misconduct for detection, prosecution and punishment, and are maintained with deliberate indifference
- n) Allowing officers and supervisors to engage in patterns and practices of actively and passively covering up misconduct by fellow officers, thereby establishing and perpetuating a "code of silence" which has becomes

ingrained in the defendants so to constitute a policy of Defendant NYC, and NYPD/NYPD;

o) Failing to intervene to prevent the above practices.

191. That as a result of the foregoing, Plaintiff Harris and Plaintiff Drew are entitled to actual, general, special and compensatory damages against the defendant NYC, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

TWELFTH CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM FOR
NEGLIGENCE IN PERFORMANCE OF DUTIES

192. Plaintiff Harris hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein, further allege:

193. That the Defendant NYC was negligent, careless and reckless in the manner in which they operated, controlled and maintained their agents, servants, and employees.

194. That the Defendant Police Officers negligently, carelessly and recklessly performed their duties in that they failed to use such care in the performance of their duties as a reasonably prudent and careful police officers would have used under similar circumstances; in that they carelessly, recklessly and negligently stopped, searched and seized Plaintiff Harris without making a proper investigation.

195. That the aforesaid occurrence, to wit: stop, search and seizure and other deprivations of constitutional and civil rights were caused wholly and solely by

reason of the negligence of the Defendants, its agents, servants and employees without any negligence on the part of Plaintiff Harris.

196. That by reason of the aforesaid, Plaintiff Harris was incapacitated and will, upon information and belief, be so incapacitated in the future, still suffers and upon information and belief, will continue to suffer mental pain, and the Plaintiff has been otherwise damaged.

197. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

THIRTEENTH CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM FOR
HARASSMENT, INTIMIDATION, ASSAULT AND BATTERY

187. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein, and further alleges:

198. The Defendant Police Officers deliberately, maliciously and unreasonably assaulted and battered Plaintiff Harris on the date, time and place in question by searching his anus underneath his undergarments.

199. The Defendant Police Officers knew or had reason to know that Plaintiff Harris had not acted in a manner on the date and time in question that gave the Defendant Police Officers probable cause to forcefully stop, search and seize him.

200. The Defendants knew or had reason to know that forcefully stopping, searching and seizing Plaintiff without probable cause would have resulted in a certain and unjustified harm and apprehension.

201. The Defendant Police Officers knew or had reason to know that Plaintiff Harris objected to the treatment because he then and there objected thereof.

202. The Defendant Police Officers were at all times unreasonable, reckless and grossly negligent in their actions towards Plaintiff.

203. The Defendant Police Officers were at all times unreasonable, reckless and grossly negligent in their actions towards Plaintiff.

204. Plaintiff was at all times conscious and aware of the imminent violation, deprivation and escalation of an unjustified and unreasonably stop, search, and seizure.

205. The aforesaid assault and battery described herein constitutes extreme and outrageous conduct carried out with the intent to cause, or disregard of a substantial probability of causing damage.

206. The assault and battery described herein were so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.

207. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and

attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

FOURTEENTH CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM FOR
NEGLIGENCE IN TRAINING AND SUPERVISING

208. Plaintiff Harris hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein, and further allege:

209. That the Defendant NYC and the NYPD their agents, servants and employees, were negligent, careless and/or reckless in the training, supervision, direction, control, appointment and/or promotion of their agents, servants and employees.

210. That the Defendant NYC and the NYPD, their agents, servants and employees failed to train the Defendant Police Officers to control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonable, prudent Police Officers.

211. That the Defendant NYC and the NYPD, their agents, servants and employees failed to give Defendant Police Officers proper instruction as to their department, behavior and conduct as representatives of their employer; and, in that the Defendant NYC and the NYPD, their agents, servants and employees were otherwise reckless, careless and negligent.

212. That the aforesaid occurrences were caused wholly and solely by reason of the negligence of the Defendant NYC and the NYPD, its agents, servants and employees without any negligence on the part of Plaintiff Harris.

213. That the mistreatment and abuse of Plaintiff Harris as set forth above was the

reasonably foreseeable consequence of said Defendants' negligent conduct.

214. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

FIFTEENTH CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM
NEGLIGENT HIRING AND RETENTION

215. Plaintiff Harris hereby repeats, reiterates and re-alleges each and every allegation contained herein with the same force and effect as if more fully and at length set forth herein.

216. That the Defendant NYC were careless and reckless in hiring and retaining as and for its employees, the above named individuals; in that the said Defendant Police Officerss lacked the experience, deportment and ability to be employed by Defendant NYC; in that Defendant NYC failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as employees of Defendant NYC.

217. That Defendant NYC failed to investigate the above-named Defendant Police Officers' background and in that they hired and retained as employees of their Police department individuals whose backgrounds contained information (based on information and belief) that revealed said Defendant Police Officers' lacked the maturity, sensibility and intelligence to be employed by Defendant NYC Defendant in that Defendant NYC knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees' and,

in that Defendant NYC, their agents, servants and employees were otherwise careless, negligent and reckless.

218. That the aforesaid occurrence were caused wholly and solely by reason of the negligence of Defendant NYC, its agents, servants and employees without any negligence on the part of the Plaintiff.

219. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

SIXTEENTH CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM
FOR UNLAWFUL DETAINER, FALSE ARREST,
FALSE IMPRISONMENT

220. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained above with the same force and effect as if more fully set forth herein, and further allege:

221. That at all relevant times Plaintiff Harris was unequivocally innocent of any crime, had not violated or breached any law, code, rule, regulation, ordinance, statute, order or otherwise in effect.

222. Plaintiff Harris was unlawfully detained, falsely arrested and falsely imprisoned by the Defendants Police Officers.

223. The aforesaid unlawful detainer, false arrest and false imprisonment of Plaintiff Harris were in clear violation of the Constitution and statutes of the State of New York and the Charter, rules and regulations of Defendant NYC of New York.

224. At all times Plaintiff Harris had not consented to being confined by the Defendant Police Officers.
225. At all times Plaintiff Harris was conscious of his restraint, loss of liberty and abduction.
226. The Defendant Police Officers lacked privilege or other legal basis to confine Plaintiff Harris.
227. As a result, of the foregoing, Plaintiff Harris suffered a deprivation of his rights, privileges and immunities secured to him by federal and state laws.
228. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

SEVENTEENTH CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM CONSPIRACY

229. Plaintiff Harris hereby repeats, reiterates and re-alleges each and every allegation contained above with the same force and effect as if more fully set forth herein, and further allege:
230. As set forth above, the Defendant Police Officers entered into an actual or tacit agreement with a shared objective.
231. As set forth above, the Defendant Police Officers agreed to the course of action and means to accomplish said objective.
232. As set forth above, the Defendant Police Officer intentionally participated in the said plan.

233. As set forth above, the Defendant Police Officers, performed one or more of the unlawful overt acts and caused Plaintiff Harris damages that were a direct result of those acts.

234. In furtherance of their objective, the Defendant Police Officers performed two or more overt acts against Plaintiff Harris, which included without limitation the following:

- a) Defendant Mangano and Defendant Thomas stopped, searched and seized Plaintiff Harris in conjunction of a vertical patrol and without legal justification;
- b) Defendant Mangano and/or Defendant Thomas subjected Plaintiff Harris to a strip-search without legal justification;
- c) Defendants Doe 1-5 lent the force of their presence to intimidate Plaintiff Harris;
- d) The Defendant Police Officers subjected Plaintiff Harris to excessive force,
- e) Defendant Sgt. Doe 6 and Defendant Captain Doe 7, although present, permitted the stop, search, seizure, assault, battery, and malicious prosecution and abuse of process to ensue, and;
- f) Defendant Mangano and Defendant Thomas maliciously prosecuted Plaintiff Harris.

235. As a result of the aforementioned, Plaintiff Harris suffered a deprivation of rights, privileges and immunities as well as severe and serious physical, psychological and emotional injuries.

236. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

EIGHTEENTH CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM VIOLATION OF
NY CONSTITUTION and STATUTES

237. Plaintiff Harris hereby repeats, reiterates and re-alleges each and every allegation contained above with the same force and effect as if more fully set forth herein, and further allege:

238. Defendant Police Officers have applied the vertical patrol policy and trespass arrest practices in a manner that deprives Plaintiff Harris of his rights, privileges and immunities secured to him by Constitution of the State of New York and related statutory law.

239. Defendant Police Officers are subject to, *inter alia*, Section 140.50 of the New York Criminal Procedure Law and Article I, Section 8, 11, 12 et seq. of the New York Constitution.

240. Defendant Police Officers, Defendant NYC and Defendant NYCHA have targeted communities of color such as NYCHA residences for focused implementation of vertical patrols and trespass arrest enforcement because residents in, and visitors to these buildings are almost entirely African Americans and Latinos.

241. Defendant NYC and Defendant NYCHA have acquiesced in, ratified, and failed to address individual violation of Plaintiff Harris's constitutional rights,

privileges and immunities and systemic deprivation those similarly situated to be free from unreasonable stop, searches and seizures.

242. These constitutional abuses were and are directly and proximately caused by policies, practices and/or customs devised, implemented, enforced, encouraged, and sanctioned by Defendant NYC and Defendant NYCHA, including: (a) targeted implementation of vertical sweeps and trespass arrests in communities of color; (b) the discriminatory failure to adequately and properly screen, train, support, and supervise NYPD officers; and (c) the discriminatory failure to adequately and properly monitor and discipline the NYPD officers.
243. By reason of the allegations contained herein, Plaintiff Harris was deprived of the following rights, without limitation: his rights to free speech and to peacefully assemble; to be free from retaliation for exercising his constitutional and statutory rights; to be free from unlawful search and seizures; to be free from gratuitous and excessive force and punishment; to be free from the deprivation of liberty without due process of law, as guaranteed to him by the Constitution and statutes of the State of New York and the Charter, rules and regulations of the City of New York.
244. The Defendant Police Officers' conduct manifested deliberate indifference to Plaintiff's constitutional rights, for which all Defendants are liable.
245. By adopting and implementing the vertical patrol policy and the trespass arrest practices in this manner, Defendant NYC and Defendant NYCHA have enforced, promoted, encouraged and sanctioned a policy, practice and/or

custom of stopping and frisking, without the reasonable articulable suspicion of criminality

required by the Constitution and laws of the State of New York.

246. By adopting and implementing the vertical patrol policy and trespass arrest practices in this manner, Defendant NYC has enforced, promoted, encouraged and sanctioned a policy, practice and/or custom of arresting person for trespass, without probable cause to establish that a criminal offense has been or is being committed as required by the Constitution and laws of New York.

247. By sanctioning and enforcing the vertical patrol policy and trespass arrest practices in this manner, Defendant NYC and Defendant NYCHA intentionally and under color of state law has stopped, seized, questioned, searched, and/or arrested Plaintiff Harris without reasonable suspicion or probable cause that a crime has been committed, in violation of the Constitution and laws of the State of New York.

248. The policies, practices and/or customs devised, implemented, enforced, promoted, encouraged and sanctioned by Defendant NYC and Defendant NYCHA result in constitutional abuses and violations which are directly and proximately caused by, without limitation, the failure to rectify the NYPD's suspicionless questioning and false arrest practice.

249. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

NINETEENTH CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM
NEGLIGENT and INENTIONAL INFLICTION
OF EMOTIONAL DISTRESS

250. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained above with the same force and effect as if more fully and at length set forth herein
251. The aforesaid acts of Defendant Police Officers, acting individually and/or in conjunction with the other defendants, were intentional, malicious and excessive, and served no reasonable or legitimate interest.
252. The Defendant Police Officers' intentional, reckless and/or negligent infliction of emotional distress constituted misconduct of an egregious and outrageous nature that exceeds all bounds usually tolerated by society and unreasonably endangered Plaintiff Harris's physical safety.
253. As a result of the foregoing, Plaintiff Harris suffered severe and serious physical and psychological and emotional injuries, including recurrence.
254. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

TWENTIETH CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM
NEGLIGENCE

255. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained above with the same force and effect as if more fully set forth herein and further allege:
256. As set forth above, if the Defendant Police Officers were not acting within the scope of their duty, then alternatively, they were negligent in their acts and omissions towards Plaintiff Harris.
257. Defendants owed a duty of reasonable care to Plaintiff Harris.
258. Defendants breached their duty of care to Plaintiff Harris.
259. If the Defendant Police Officers were not acting within the scope of their duty, then alternatively, their negligent acts and omissions actual and proximate cause of injuries and damages suffered by Plaintiff Harris.
260. As a result of the foregoing, Plaintiff suffered severe and serious physical, psychological and emotional injuries.
261. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

TWENTY-FIRST CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM
RESPONDEAT SUPERIOR

262. Plaintiff Harris hereby repeats, reiterates and re-alleges each and every allegation contained above with the same force and effect as if more fully and at length set forth herein and further allege:

263. Defendant NYC and NYPD assume the risk incidental to the maintenance of its agents, assignees, employees, servants, or officers of as said risks attach to the consumers of the services provided by the Defendant Police Officers.

264. Inasmuch as the Defendant Police Officers were acting for, upon, and/or in furtherance of the business of their employer(s) and/or within the scope of their employment, Defendant NYC and NYPD are liable, jointly and severally, under the doctrine of respondeat superior for the tortuous actions of same.

265. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

TWENTY-SECOND CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM
FAILURE TO PROTECT and INTERVENE

266. Plaintiff Harris hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein, and further allege:

267. All Defendant Police Officers owed a duty to care and protect Plaintiff Harris while he was in their custody, control and care.

268. As set forth above, all Defendant Police Officers failed to protect Plaintiffs from known and dangerous harm.

269. Those individual Defendant Police Officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct; had an opportunity to prevent such conduct; had a duty to intervene,

mitigate and/or stop the events alleged herein, and failed to, *inter alia*, report the unlawful conduct alleged herein to supervisors; investigate, sanction, and/or discipline and participant.

270. As set forth above, Defendant Police Officers failed to intervene, mitigate and/or stop the events alleged herein.

271. All Defendant Police Officers failed to report the unlawful conduct alleged herein to supervisors.

272. The Defendant NYC, Defendant NYCHA and NYPD, their agents, servants and employees failed to investigate, sanction, and/or discipline any of the Defendant Police Officers for their aforesaid unlawful conduct.

273. Due to the Defendant Police Officers' failure to protect Plaintiff Harris, he sustained damages.

274. As a direct and proximate result of this unlawful conduct, Plaintiff Harris sustained the damages herein alleged.

275. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

TWENTY-THIRD CAUSE OF ACTION:
PENDANT NEW YORK STATE CLAIM
PRIMA FACIE TORT

276. Plaintiff Harris, hereby repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully and at length set forth herein and further allege:

277. The aforementioned acts and omissions of the defendants, their agents, servants, and employees, caused harm to be inflicted upon Plaintiff Harris motivated by disinterested malevolence and were the proximate cause of the damage visited upon him.
278. As a result of the foregoing, Plaintiff suffered injuries.
279. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests judgment against Defendant as follows:

- a) Actual, general and compensatory damages against all Defendant, jointly and severally;
- b) Punitive damages in an amount sufficient punish individual Defendants and to deter other like them from repeating the same offenses, jointly and severally;
- c) Special damages to cover all medical expenses and pecuniary losses;
- d) Reasonable attorney's fees and costs pursuant to 28 U.S.C. § 1988; and

e) Such other and further relief as this Court deems just and proper.

Dated: New York, New York
The 26th day of May 2015

/s/

D. Andrew Marshall, Esq.
Attorney for the PLAINTIFF
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New York, New York 10007
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EIGHTH CAUSE OF ACTION:
FAILURE TO INTERVENE

280. Plaintiff Harris and Plaintiff Drew hereby repeat, reiterate and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if more fully set forth herein and further allege:
281. Those individual Defendant Police Officers that were present, but did not actively participate in the aforementioned unlawful conduct, observed such conduct; had an opportunity to prevent such conduct; had a duty to intervene, mitigate and/or stop the events alleged herein.
282. Those individual Defendant Police Officers that were present, but did not actively participate in the aforementioned unlawful conduct, failed to, *inter alia*, report the unlawful conduct alleged herein to supervisors.
283. Those individual supervising Defendant Police Officers who were present, but did not actively participate in the aforementioned unlawful conduct, failed to investigate, sanction, and/or discipline any participant.
284. As a direct and proximate result of this unlawful conduct, Plaintiff Harris and Plaintiff Drew sustained the damages herein alleged.
285. That as a result of the foregoing, Plaintiff Harris is entitled to actual, general, special, compensatory and punitive damages against the defendants, and attorney's fees, costs, expert's fees and disbursements pursuant to 42 U.S.C. § 1988.
286. Plaintiff Harris and Plaintiff Drew hereby repeat, reiterate and re-allege each and every allegation contained in the proceeding

paragraphs with the same force and effect set forth herein, further alleges:

287. That the Plaintiffs seek punitive damages against each and every individually named Defendants including but limited to Defendant Thomas and Defendant Mangano.

288. That the Plaintiffs seek punitive damages against each individually name officer to deter not only these Defendants police officers but other like minded individuals police officers from engaging in future similar egregious conduct.

289. That punitive damages are warranted under the facts and circumstance of this case because Defendant Thomas and Defendant Mangano acted with deliberate, premeditated and specific intent as part of a policy to unreasonably and unlawfully deprived the Plaintiffs of their rights, liberties and immunities.

290. That punitive damages are warranted under the facts and circumstance of this case because Defendant Thomas and Defendant Mangano were motivated by prejudice, disdain, contempt or other impermissible grounds such as the Plaintiffs' race or social status, resulting in an unreasonable and unlawful deprivation of Plaintiffs' rights, liberties and immunities.

THIRD CAUSE OF ACTION:
ATTORNEY FEES 42 U.S.C. §1988

291. Plaintiff Harris and Plaintiff Drew hereby repeat, reiterate and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if set forth herein, further alleges:
292. That the Plaintiffs makes a claim for attorney's fees and costs predicated upon 42 U.S.C. §1988 which authorizes the award of attorney's fees and costs to the prevailing plaintiffs in actions brought pursuant to 42 U.S.C. §§1981, 1983, 1985(3), and the New York Civil Practice Law and Rules, Article 86, for the pendant claims arising under state law.
293. That the Plaintiffs are entitled to and hereby makes claim for the recovery of reasonable attorney's fees incurred as a result of prosecuting their claim against the individually named Police officer pursuant to 42 U.S.C. §1988.